Sexual identity

Homosexual and bisexual, trans- and intersex persons are often subsumed under the acronym LGBTQI*. LGBTQI* stands for lesbian, gay, trans*, queer and inter* persons. The asterisk* is a placeholder for other identities.

The Term 'sexual identity', which is used in the General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)), originally included all these groups. Meanwhile, however, it was clarified through European case law that trans* and inter* persons are protected under the AGG (Allgemeines Gleichbehandlungsgesetz)'s characteristic of gender, since those two constitute gender identities, while gay, lesbian and bisexual are sexual orientations.

Although progress has been made over the last decades with regard to equality before the law, lesbian, gay and bisexual people still experience discrimination – be it at school, work or in other settings. For instance, people affected by discrimination who turn to the Federal Anti-Discrimination Agency for advice regularly report having been discriminated against by colleagues or superiors, insulted by fellow students or teachers or even being violently attacked in public.

The AGG (Allgemeines Gleichbehandlungsgesetz) prohibits discrimination on grounds of sexual identity in everyday activities as well as in working life. Since, however, this ban is still often circumvented, the Anti-Discrimination Agency strongly believes that to fight homophobia and biphobia, it is necessary to improve the legal protection of these groups and to strengthen advice structures across Germany.

FAQs (frequently asked questions) on sexual identity

Frequently Asked Questions

1. What is the meaning of the term sexual identity?

The term sexual identity refers to lesbian, gay, bisexual, heterosexual and also to asexual or pansexual persons. Sexual identity is often used synonymously with the term sexual orientation. In fact, the term sexual identity as opposed to the term sexual orientation makes clear that sexuality is an integral part of a person's self-perception that is not only defined by a sexual relationship to another person.

The General Act on Equal Treatment (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)) prohibits discrimination on grounds of sexual identity in working life and in daily business, though it does not define the term sexual identity. In the explanatory memorandum to the act, however, the term also covers discrimination against transgender and intersex persons, i.e. (that means) gender identity. The European Court of Justice considers transness and intersexuality protected by the characteristic of gender.

2. What does the abbreviation LGBTI* (Lesbian, Gay, Bisexual, Transgender and inter) mean?

The abbreviation LGBTI* is a collective term and stands for lesbian, gay, bisexual, transgender and intersex persons. The asterisk is a place holder for various identities. Trans*, for example, is a generic term for different gender identities (transgender, transsexual, trans-identifying...). The abbreviation is used in different variants and may include, for example, additions such as Q (queer), A (asexual) or a second T (transsexual).

The English term *queer* is also used as a comprehensive term for LGBTI* (Lesbian, Gay, Bisexual, Transgender and inter) (German: LSBTI* (Lesbisch, Schwul, Bisexuell, Transgender und Inter)). *Queer* was once considered a derogatory term but was chosen as the self-designation by persons who, in their sexual or gender identity, cannot or do not wish to classify themselves as heteronormative or gender-binary.

The history of homosexual, bisexual, transgender and intersex people is closely intertwined. Many organisations and associations, as well as symbols and events, therefore equally address lesbian, gay and bisexual people and transgender and intersex people.

3. What is homophobia?

Homophobia refers to the open or subtle rejection of homosexuality. In this context, the term describes a disparaging/negative attitude towards gay, lesbian and bisexual persons, which often goes hand in hand with prejudice, discrimination and even psychological and physical violence, and was the basis of decades of state persecution. Homophobia can also target people who are perceived as homosexuals.

The International Day against Homophobia, Transphobia and Biphobia raises awareness of discrimination and persecution of LGBTI* (Lesbian, Gay, Bisexual, Transgender and inter) with actions and events every year on 17 May.

4. Where do homosexual and bisexual people experience discrimination?

The introduction of same-sex marriage in 2017, the rehabilitation of wrongfully convicted homosexuals under Section 175 of the Criminal Code and the ban on conversion therapies, which was adopted in 2020, represented important steps to protect homosexual people and to review the history of persecution of homosexual and bisexual people.

Nevertheless, lesbian, gay and bisexual people still become victims of discrimination or violence frequently. **In 2020, the European Union Agency for Fundamental Rights (FRA) published the results of a survey from 2019 of 140,000 people who described themselves as lesbian, gay, bisexual, transgender or intersex.** Around 16,000 people from Germany took part. Of those, 36 % (per cent) responded that they had experienced physical or sexual assaults on account of their sexual or gender identity in the last five years before the survey. These figures were clearly above the EU (European Union) average of eleven % (per cent).

In addition, there is still discrimination, for example with regard to blood donation: until 2015, men having sex with men were not allowed to donate blood as a matter of principle. With its decision in the Léger case (C-528/13) of 29 April 2015, the European Court of Justice ruled that, although men who have sex with men are subject to a high risk of transmission of diseases such as HIV when donating blood, the permanent contraindication in blood donations is incompatible with the fundamental rights of the Union and in particular with the ban on discrimination on the grounds of sexual identity. Since 2017, men who have sexual relations with men have been allowed to donate blood in Germany if they have not had sex with another man for twelve months. There is no such waiting period for any other group. This decision is legally reflected in the regulation of Section 5 (1) Sentence 2 of the German Transfusion Act (TFG (Transfusionsgesetz)) in conjunction with section 2.2.4.3.2.2 of the Guidelines for the Preparation of Blood and Blood Components and the Use of Blood Components (Hemotherapy) which the German Medical Association amended in 2017.

5. What legal protection against discrimination is there in Germany?

The General Act on Equal Treatment (German abbreviation: *AGG* (Allgemeines Gleichbehandlungsgesetz)) prohibits discrimination on grounds of sexual identity. The Act in particular provides protection at the workplace and in legal transactions of everyday life, for instance when going shopping or when going to the cinema. If a person is discriminated against on the basis of sexual identity, it is irrelevant whether the affected individual is in fact lesbian, gay or bisexual. The only decisive factor is the corresponding assumption by the discriminating person.

Unlike the AGG (Allgemeines Gleichbehandlungsgesetz), the Basic Law does not expressly provide protection for the characteristic of sexual identity. Incorporating the term in Article 3 would ensure that homosexual and bisexual persons are protected against discrimination in the same way as members of different social groups . In the Land constitutions of Berlin, Brandenburg, Bremen, Saarland and Thuringia, this protection has already been implemented and incorporated. In a 2019 **survey by the Federal Anti-Discrimination Agency** (only available in German) on amending Article 3, which relates to equality before the law, and on including the prohibition of discrimination on the grounds of sexual orientation, 52 % (per cent) of respondents were in favour of it, while one third (33 % (per cent)) somewhat or fully disagreed.

6. What is marriage for all?

On 30 June 2017, the German *Bundestag* passed the Act introducing the right to marry for persons of the same sex. This means that same-sex couples have also been allowed to marry since 1 October 2017.

Before that, since 2001, same-sex couples had only been able to enter into a registered civil partnership that, while taking into account important regulations such as the right to visit the partner in hospitals and the right of residence for non-German partners, did not mean equal treatment. Inequalities continued, especially with regard to tax regulations and adoption law, which were only gradually declared to be violating the principle of equality by various decisions of the Federal Constitutional Court. In the meantime, same-sex couples have been placed on an equal footing with others in tax and adoption law.

Couples who already live in a registered partnership can convert it into marriage but are not obliged to do so. Although it has not been possible to enter into registered civil partnerships since the introduction of same-sex marriage, existing civil partnerships continue to be under legal protection.

7. What was the meaning of Section 175?

In 2002, the German *Bundestag* annulled the judgements from the time of National Socialism. Only on 22 July 2017, all judgements passed after 1945 were also declared null and void. This was preceded by an expert opinion by the Federal Anti-Discrimination which found that it was constitutionally necessary to annul the judgements. Affected persons can now claim damages at the Federal Office of Justice in low-threshold proceedings. **Further information on Section 175 can be found here** (only available in German).

To the topic

→ **Discrimination experienced on the grounds of sexual identity in Germany**